

Chapter Three

3. What is Citizenship?

- States cannot be understood in the absence of Citizens and Citizenship. In the same way, citizenship cannot be explained without the state.
- A “**citizen**” is the **position or status** of being a citizen of a particular country. i.e. **inhabitant** of a country or member of the state.
- **Citizenship** represents a **relationship between the individual and the state**, in which the two are bound together by reciprocal rights and obligations.

- Citizenship is a legal status and an **instrument** identity.
- The criteria exist in different states in terms of **rules, laws or principles**.
- Therefore, different countries can follow different laws in granting and denying citizenship status or who its citizens are and who are not or even the same country can have **different laws** depending up on the prevailing political conditions of that state.

3.1. The Genesis of Citizenship: Normative and Historical Evolution of Citizenship

- While there is disagreement about when citizenship began, many thinkers point to the early **city-states** of ancient Greece.
- In the ancient Greek city state Athens- the people were divided into two classes- **citizens and slaves**.
- But in modern times the distinction between people are made- Citizens and aliens/foreigner.
- While in a dictatorial or authoritarian political system, the rights and privileges of citizenship are enjoyed by a small group of the society but the **majorities are merely required to fulfill their responsibilities or duties as members of that country**, in a democratic systems, however, citizens are expected to express their allegiance to their nation and **obey the laws** and reciprocally they are treated equally without any discrimination.

❖ The concept of citizenship has raised fierce controversies over the issues of

- i. The relationship between the **state and individuals**,
- ii. Factors hinder the equal treatment of individuals,
- iii. Above all the issue of is citizenship an individual or collective issue?

➤ In regarding to this, we examine four Approaches/theories on citizenship:

1. Liberal Citizenship Approach
2. Communitarian Citizenship Approaches
3. Civic Republican Citizenship Approaches
4. Radical Democratic

3. 2. Ways of Acquiring and Loosing

3. 2. 1. Major Ways of Acquiring

- The process of acquiring citizenship varies from country to country depending up on the **existing specific laws** of each country.
- There is **no clear cut uniformity in acquiring citizenship** status as there is no common standard that govern all state of the world.
- ❖ The are **Three Ways** of Acquiring of Citizenship
 1. Citizenship by Birth
 - ✓ It is the natural aspect since it is obtained through birth.
 - ✓ Involuntary way of acquiring citizenship
 2. Citizenship by Law (Naturalization)
 3. Citizenship by mixed (dual) system

1. Citizenship by Birth

❖ Jus soli

✓ *jus soli* = a Latin phrase the **right of soil**.

✓ which means the law of soil (by place of birth)

E.g. U.S.A, Britain, Canada

➤ **Exception:- Babies born from:**

✓ Babies born from **diplomat**

✓ Babies born from **International organization representatives/ workers,**

✓ Babies born from **refugees,**

❖ Jus sanguine

✓ Jus

Sanguineous a

Latin phrase the **right of blood or**

The law of blood

➤ What matters is the **lineage**, **descent** or blood relationship, **not the place of birth**.

➤ E.g all most all the world state follow this.
Ethiopia, Canada, France, U S A

2. Citizenship by Law (Naturalization)

✓ Is the legal process by which **foreigners/alien** become citizens of another country.

✓ It is **purely under the authority of the state**.

✓ To gate this individual should **fulfill the specific criteria** set by the state

▪ Political case (secession, merger and subjugation),

▪ Grant on application,

▪ Marriage,

▪ Legitimatization/adoption, and

▪ Reintegration/restoration.

➤ The nationality act of 1930 was repealed by proclamation No. 378/2003 called Ethiopian Nationality proclamation.

❖ The Modes of Acquiring and Loosing Ethiopian Citizenship

<u>Ways of /Modes of Acquiring</u>	<u>Ways/Modes Loosing</u>
a. Grant on Application (registration)	a. Renunciation (Expatriation)
b. Cases of Marriage	b. Deprivation
c. Cases of Adoption (Legitimizing)	c. Substitution
d. Citizenship by Special Cases	d. Lapse
e. Re-Admission to Ethiopian Nationality (Reintegration/Restoration)	

3. Dual Citizenship

- ❖ There are times when a person finds himself/herself with multiple citizenship status.
- ❖ **Dual citizenship** is when a person has citizenship status of two countries.
- ❖ This might be due to an overlap of countries' citizenship laws. i.e a person may have one because of his /her place of birth (jus soil) and another because of his/her parent's citizenship by blood (jus sanguinis).
- ❖ Similarly, when a person has citizenship status of more than two countries it is termed as **multiple citizenship**.
- ❖ Some individuals have more than two citizenship status as a result of **jus soil, jus sanguinis or naturalization laws**.

❖ **Statelessness:-** is lack of citizenship or a person is not a citizen/national of any country. This can happen if:

- ✓ The homeland of a person denies him/her citizenship as punishment,
- ✓ A person renounces citizenship of his/her country but does not acquire another citizenship.
- ✓ A person's homeland has been destroyed by another country.